

Court No. - 3

Case :- WRIT - C No. - 28629 of 2021

Petitioner :- Nand Kishor

Respondent :- State Of U.P And Another

Counsel for Petitioner :- Rajiv Sisodia,Dhirendra Kumar
Srivastava

Counsel for Respondent :- C.S.C.,Rajesh Yadav

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

None appears for the petitioner even in the revised call.

Learned standing counsel and Sri Rajesh Yadav, learned counsel for the respondent no.2 are present.

This writ petition has been filed for quashing the proceedings in pursuance of notice dated 19.08.2021 for realising Rs.53632/-.

Learned counsel for the respondent no.2 states on instruction that the petitioner may submit his objection before the respondent no.2 in terms of para 6.8 of the U.P. Electricity Supply Code, 2005 which shall be decided by the respondent no.2, in accordance with law, within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, the writ petition is **disposed of** giving liberty to the petitioner to submit his objection alongwith a certified copy of this order before the respondent no.2, in accordance with law, within four weeks from today. In the event such an objection is submitted before the respondent no.2 within the stipulated period, it shall be decided by the respondent no.2, in accordance with law, within a further period of six weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the notice dated 19.08.2021.

This order shall be informed by learned counsel for the respondent no.2 to the petitioner/his counsel in writing within three days.

Order Date :- 16.5.2022/vkg